Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1007
Claimant:	Nicole Brown
Adjuster:	Christopher Wong

07/07/2023

Claimant reported a sideswipe that occurred while changing lanes on a multi-lane road. The claimant is handling the claim without legal representation and was the driver of the insured vehicle, which is listed on the policy.

07/27/2023

Police attended and confirmed the claimant was in the vehicle at the scene. The other driver gave a statement that mathces the claimant's description of the lane change and contact between the two cars.

09/16/2023

Scene photos and two independent witness statements were obtained and place the impact as the claimant described. Damage to the claimant's rear quarter panel and the other vehicle's front passenger side appears consistent with the reported contact.

09/28/2023

Claimant reoprted neck and back strain and was seen at urgent care the same day. The injury is a plausible result of a sideswipe at this speed, and no prior injury to the neck or back is known from the claimant's records.

10/13/2023

Claimant has described the accident the same way in each call, in the initial report, the recorded statement, and the follow-up conversation. Nothing has been raised that conflicts with that account.

11/03/2023

Vehicle inspection found no earlier damage to the claimant's car, and nothing in the file suggests the damage predates the policy's coverage start. The repair estimate lines up with the impact points shown in the photos.

12/20/2023

Treatment has grown well beyond what is typical for this type of strain, with visits now close to daily. Several weeks after the crash, the calimant began reporting pain in a new body area that was not mentioned at first, and the treating provider's notes list addtiional referrals.

02/04/2024

File is being referred to the claims review team to examine the scope and timing of the treatment against the injury as first reported. Liability for the collision is not in question, and the claimant remains cooperative with requests for records.

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Recorded Statement

Claim number:	C-1007
Statement of:	Nicole Brown
Taken by:	Christopher Wong
Date:	07/09/2023

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the sideswipe collision you reported. Please state your full name for the record.

A: I'd rather just give you my first name and last initial, if that's all right.

Q: That's fine. Where did the collision happen?

A: It was on a multi-lane road in League City, Texas, near a shopping center entrance.

Q: Can you walk me through what you were doing right before impact?

A: I was driving in the right lane and wanted to move over to the left lane to get ready for my exit. I checked my mirror and glanced over my shoulder, and I didn't see anything close. When I started to move over, the other car came up on my left side and we scraped along each other.

Q: Did you see the other vehicle before you began your lane change?

A: Not that I remember. It seemed to come out of my blind spot quickly.

Q: Were you using your turn signal?

A: Yes, I had it on for a few seconds before I moved over.

Q: Did you or the other driver stop after the contact?

A: We both pulled onto the shoulder. The other driver got out and we exchanged information.

Q: Did you seek medical attention?

A: I went to an urgent care clinic later that day. I have been having pain in my neck and lower back, and it's stiff when I wake up in the morning.

Q: Have you had any prior neck or back problems?

A: I had some mild back soreness a few years ago, but it went away with rest and I didn't need treatment.

Q: Thank you. Is there anything you would like to add to your statement?

A: No, I think that covers it. I just want my car and my health taken care of.

Q: Understood. This concludes the recorded statement. Thnak you.